Lecture Notes: Constitutional Law

Article 14: The Right to Equality

The Doctrine of Reasonable Classification and the Nexus Test

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Part I: The Philosophical Foundation – Why Classification Is Essential to Equality

1 The Core Principle: Treating Unequals Equally Is a Violation of Equality

The right to equality under **Article 14** of the Constitution of India is not a mandate for **absolute, mechanical, or rigid equality**. It does not command that every person must be treated in an identical manner. To treat everyone identically, regardless of their differing circumstances, needs, and conditions, is not equality—it is **injustice**.

The fundamental premise of Article 14 is captured in the maxim: **"Equals must be treated equally, and unequals must be treated unequally."**

The Foundational Principle of Article 14

Because all human beings are not equal in their various aspects—in their upbringing, height, weight, age, education, income, background, and needs—treating unequals equally is a violation of equality.

1.1 Illustrations of the Principle

Illustration 1: Dietary Needs. Suppose one person observes a religious fast and consumes only specific foods (e.g., sabudana, fruits), while another person is a non-vegetarian. If the mess serves chicken biryani to everyone, including the person observing a fast, and compels them to eat it in the name of "equality," that is not equality—it is a **violation** of that person's rights. Conversely, if the non-vegetarian person is denied chicken and forced to eat only khichdi every day because another person is fasting, that too is injustice. The needs are different, and the treatment must be different.

Illustration 2: Regional Dietary Habits. A person from Uttar Pradesh may be accustomed to eating four or five parathas for breakfast. A person from Maharashtra may be satisfied with a serving of poha. If a uniform rule is made that **everyone must eat only poha** for breakfast, the person from UP will remain hungry. This is not equality; it is a failure to account for different needs.

Illustration 3: Age and Requirements. A person who is 60 years old may have different physical, medical, and dietary requirements compared to a person who is 20 years old. Applying the same standard to both, without regard to their differing conditions, is not equal treatment.

The Conclusion: God and nature have created human beings with infinite variety. No two individuals are identical in all respects. Therefore, the law **must** make distinctions. It must **classify** persons and things into groups based on relevant similarities and differences, and apply appropriate rules to each group. The task of Article 14 jurisprudence is to determine **when a classification is valid and when it is discriminatory**.

2 The Two-Fold Command of Article 14

From this foundational principle, it follows that Article 14 embodies two complementary commands:

1. **Persons who are similarly situated (i.e., who belong to the same class) must be treated alike.** There must be no discrimination between persons who are in the same group. If Niyati and Manaswi are both observing a fast, but Niyati is given plain sabudana worth 15 while Manaswi is given sabudana vada with raisins and cashews worth 500, that is **discrimination** within the same class. Persons in the same group must receive the same treatment.

2. **Persons who are differently situated (i.e., who belong to different classes) may be treated differently.** The law may, and indeed must, make reasonable distinctions between different classes of persons to account for their differing circumstances.

The Critical Question: How do we determine who falls into "one group" or "one class"? What principles do we apply to decide whether a group is properly constituted or whether the classification is arbitrary? This is the function of the **Doctrine of Reasonable Classification** and the **Nexus Test**.

Part II: The Doctrine of Reasonable Classification

3 The Necessity of Classification

If Article 14 were applied with absolute rigidity—if every law had to apply identically to every person without any distinction whatsoever—the State would be paralysed. It would be unable to legislate for specific groups, to address specific problems, or to make any special provision for any category of persons. The power to classify is, therefore, an **essential incident of the legislative power**. A legislature that cannot classify cannot govern.

The Supreme Court has consistently recognised that Article 14 does not forbid classification. It forbids **class legislation** (discrimination against a class without any reasonable basis) but permits **reasonable classification**.

4 The Two-Fold Test for Valid Classification

For a classification to be valid under Article 14, it must satisfy **two conditions**, both of which must be cumulatively fulfilled:

1. **Intelligible Differentia:** The classification must be founded on an **intelligible differentia**—a clear, logical, and understandable basis that distinguishes the persons or things grouped together from those left out of the group. The basis of classification must not be arbitrary, fanciful, or capricious. It must be capable of being understood and rationally explained.

2. **Rational Nexus:** The differentia on which the classification is founded must have a **rational nexus** (a reasonable connection) with the **object sought to be achieved** by the statute in question. There must be a logical relationship between the basis of classification and the purpose of the law. It is not enough that the classification is clear; it must also be relevant to the goal the legislature is trying to accomplish.

The Two-Fold Nexus Test

Test 1 – Intelligible Differentia: *On what basis are you classifying? Is the basis logical, clear, and understandable?*
Test 2 – Rational Nexus: *Does the basis of classification have a reasonable connection to the objective of the statute?*

4.1 A Note on the Burden of Proof

The burden of proving that a classification is unreasonable and violative of Article 14 lies, in the first instance, on the person challenging the law. However, once a *prima facie* case of discrimination is made out, the burden may shift to the State to justify the classification.

Part III: Case Law on Reasonable Classification

5 *State of West Bengal v. Anwar Ali Sarkar* (1952)
(The "Dacoit Case")

5.1 Facts and Background

The State of West Bengal enacted the **West Bengal Special Courts Act, 1950**. The object of the Act was to provide for the **speedier trial** of certain offences.

Section 5(1) of the Act empowered the State Government, by notification, to direct that any particular case or class of cases be tried by a Special Court under the Act. The Act conferred **absolute and unguided discretion** on the State Government to select which cases would be sent for speedier trial. There were **no guidelines, no criteria, and no standards** to govern this selection.

The procedure under the Special Courts Act was different from the normal procedure under the Code of Criminal Procedure. The Special Courts procedure was more stringent: certain procedural safeguards available to the accused under the ordinary CrPC were not available under the Special Courts Act. The trial was more expeditious but also more **rigorous for the accused**.

Anwar Ali Sarkar and **49 other persons** were accused of committing dacoity (armed robbery). They were caught during an armed raid. The State Government issued a notification directing that their cases be tried by a Special Court under the Act. Anwar Ali Sarkar was tried, convicted, and sentenced under the Special Courts Act.

Anwar Ali Sarkar **challenged the constitutional validity of Section 5(1)** of the Act on the ground that it violated **Article 14** of the Constitution.

5.2 The Challenge

The core challenge was this: The Act gave the State Government **unfettered discretion** to pick and choose which cases would be tried under the special procedure. The same offence (dacoity) committed by different persons could be tried under two different procedures—the ordinary CrPC procedure and the special procedure—solely at the discretion of the executive, without any guiding principle. This, it was argued, was discriminatory and violated the right to equality.

5.3 The Judgment

The case was heard by a **7-judge Constitutional Bench** of the Supreme Court. By a **6:1 majority**, the Court struck down Section 5(1) as unconstitutional. **Chief Justice Patanjali Sastri** dissented.

The Majority's Reasoning:

The majority applied the **Doctrine of Reasonable Classification** and the **Two-Fold Nexus Test**.

1. **Intelligible Differentia – NOT Satisfied:** The Act did not lay down any basis or criterion for classifying which cases should be sent for speedier trial. The

State Government had **absolute and unguided discretion**. The classification was based solely on the subjective opinion of the executive officers. If the officers changed, different cases would be selected. This was not an "intelligible" basis for classification; it was arbitrary and capricious.

2. **Rational Nexus – NOT Satisfied:** Even assuming there was some differentia, it had **no rational connection** to the object of the Act. The object of the Act was to ensure **speedier trial**. But how was giving **unlimited, unguided discretion** to the government connected to achieving speedier trial? There was no logical link. The object (speedier trial) could be achieved without conferring arbitrary power on the executive. The means (absolute discretion) were not rationally related to the end (speedier trial).

Illustration of the Discrimination:

Suppose dacoities occurred in five different districts of West Bengal. In each district, two dacoits were caught. The State Government, in its discretion, sent the cases of the two dacoits from District A to the Special Court for speedier trial, while the cases of the dacoits from Districts B, C, D, and E were tried under the ordinary CrPC procedure.

The two dacoits from District A faced a more rigorous procedure with fewer procedural safeguards, while the other dacoits enjoyed the full protections of the ordinary criminal procedure. There was **no rational basis** for this distinction. Why were these two dacoits singled out? The State could not provide a justifiable answer. This was discrimination within the same class (all persons accused of dacoity).

Result: Section 5(1) of the West Bengal Special Courts Act, 1950, was declared **unconstitutional** and void. Anwar Ali Sarkar's conviction was set aside. He **won** the case.

5.4 Key Principle

A law that confers **absolute, unguided, and unfettered discretion** on the executive to classify persons or cases, without any criteria or standards, violates Article 14. The power to classify must be exercised based on **intelligible principles**, not on the whims of officials.

6 *Kathi Raning Rawat v. State of Saurashtra* (1952) (The Contrast Case)

6.1 The Striking Similarity and the Different Outcome

There is a companion case to *Anwar Ali Sarkar* that presents a remarkable contrast: ***Kathi Raning Rawat v. State of Saurashtra***. The text of the impugned section in this case was **virtually identical** to Section 5(1) of the West Bengal Act. It also conferred discretion on the State Government to send cases for trial before Special Courts. Yet, in this case, the Supreme Court **upheld** the provision as constitutionally valid.

The Critical Distinction: The Preamble and Context.

The difference lay in the **preamble** and the **surrounding circumstances** of the Saurashtra Act. Unlike West Bengal, the State of Saurashtra was facing a **grave law and order situation**. There was widespread communal violence, dacoity, and a breakdown of the ordinary criminal justice system. The preamble of the Saurashtra Act explicitly

stated that the Act was enacted to deal with the **exceptional situation** prevailing in the State.

The Supreme Court held that, in the context of this **exceptional situation**, the discretion conferred on the government was not unguided. The preamble itself provided the **guiding principle**: the government was to use its discretion to send those cases for speedier trial which were connected to the breakdown of law and order. The discretion was not absolute; it was **channelled** by the stated objective of restoring public order.

The Common Judge: It is noteworthy that **Chief Justice Patanjali Sastri** was a judge in both cases. He dissented in *Anwar Ali Sarkar* (voting to uphold the Act) and was part of the majority in *Kathi Raning Rawat* (upholding the Act).

The Lesson: A provision that appears identical in text may be held valid or invalid depending on its **context, purpose, and the presence or absence of guiding principles**—whether in the statute itself or in the surrounding circumstances.

7 *Chiranjit Lal Chowdhuri v. Union of India* (1950)

This case addressed the question: **"Can a single person constitute a class?"**

The Supreme Court held that **yes, a single person can, in certain circumstances, constitute a valid class** for the purposes of Article 14. If a single person or entity possesses unique characteristics that distinguish them from all others, and if the law addresses that unique situation, the classification may be valid. The test remains the same: the differentia must be intelligible, and there must be a rational nexus with the object of the law.

Illustration: If a single company is responsible for 90% of a particular industry's pollution, a law addressing that specific company's conduct may be a valid classification, because the company's unique characteristics distinguish it from all others.

8 Other Relevant Cases

- ***In re: Special Courts Act*** — Further elucidation on the limits of special courts and Article 14.
- ***Ram Krishna Dalmia v. Justice S.R. Tendolkar*** (1958) — A landmark case that consolidated the principles of reasonable classification. The Supreme Court laid down several propositions summarising the law on Article 14.
- ***Ex-Services Association v. Union of India*** (2006) — A case involving a cut-off date for medical benefits for retired servicemen. Those who retired before 1997 were not required to pay for medical facilities; those who retired after 1997 were required to pay. The reasoning of the Court has been the subject of academic debate. The case illustrates that judicial reasoning is not infallible; judges may decide cases based on their view of the situation at the time. Students are encouraged to critically examine the reasoning and form their own views, provided they give proper reasons.

8.1 A Note on Judicial Fallibility and the Colonial Mindset

The lecture noted that judges, like all human beings, can make errors in reasoning. A judgment is not divine law; it is the product of human deliberation. An example was given of **Justice Endlaw** of the Delhi High Court, who, in a copyright case (*Oxford University Press v. Delhi University*), delivered a judgment criticising the colonial mindset of blindly copying Western copyright laws. The University of Delhi library had photocopied expensive textbooks (costing over 1 lakh) for students who could not afford them. Oxford University Press sued. Justice Endlaw held, in a celebrated judgment, that **"Copyright is not divine law."** The principle is right, but the specific application by a judge in a given case may be debated.

Students should know the judgments, but they may differ in their reasoning, provided they articulate their reasons cogently.

Part IV: The Primacy of Equality in the Constitutional Scheme

9 Why Is Article 14 Placed First Among the Fundamental Rights?

The Fundamental Rights in Part III of the Constitution are arranged in a specific order. **Article 14 (Right to Equality)** is placed **before** Article 19 (Right to Freedom) and Article 21 (Right to Life and Personal Liberty). This placement is not accidental; it reflects a conscious constitutional choice.

The question for the next class is: **Is equality more important than life (Article 21) and freedom (Article 19)?** Why did the framers place equality first? The relationship between these three foundational rights—equality, freedom, and life—is a central theme of constitutional jurisprudence.

10 Preview: Equality Before Law and Equal Protection of Laws

In the next class, the discussion will turn to the two distinct concepts embodied in Article 14:

- **Equality Before Law:** A concept of English origin. It is a negative concept implying the absence of any special privilege in favour of any individual. It means that every person, whatever their rank or status, is subject to the ordinary law of the land and the jurisdiction of the ordinary courts.
- **Equal Protection of the Laws:** A concept of American origin (drawn from the 14th Amendment to the U.S. Constitution). It is a positive concept implying the right to equal treatment in equal circumstances. It requires that persons in similar circumstances be treated alike by the law.

Part V: Assignment

11 Reading for the Next Class

Students are required to read the following cases carefully:

1. ***State of West Bengal v. Anwar Ali Sarkar*** (1952) — The "Dacoit Case." Understand the application of the Intelligible Differentia and Rational Nexus tests and why the Act was struck down.
2. ***Kathi Raning Rawat v. State of Saurashtra*** (1952) — The contrast case. Identify why a provision with identical text was upheld in this case. Pay attention to the role of the preamble and the surrounding circumstances.
3. ***Chiranjit Lal Chowdhuri v. Union of India*** (1950) — On the question: "Can a single person constitute a class?"
4. ***Ram Krishna Dalmia v. Justice S.R. Tendolkar*** (1958) — Summarises the principles of reasonable classification.
5. ***In re: Special Courts Act***
6. ***Ex-Services Association v. Union of India*** (2006) — Critically examine the reasoning.

12 Questions for Reflection

1. Why is classification necessary for the application of Article 14?
2. What are the two tests for a valid classification? Explain with reference to *Anwar Ali Sarkar*.
3. Why did *Anwar Ali Sarkar* succeed while a similar provision was upheld in *Kathi Raning Rawat*?
4. Why is Article 14 placed before Articles 19 and 21 in the Constitution?

— End of Lecture —